

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Coleson Smith	Team: Squad #01	CCRB Case #: 202203882	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 06/10/2022 2:50 AM	Location of Incident: Front of Best Deli and Grill	18 Mo. SOL 12/10/2023	Precinct: 33		
Date/Time CV Reported Mon, 06/13/2022 8:41 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 06/13/2022 8:41 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Thomas Kang	10168	960743	033 PCT
2. PO Carlos Arrecis	08552	963380	033 PCT
3. PO Sacko Hadzovic	23446	962458	033 PCT
4. SGT Sean Jordon	02053	956011	033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO John Battista	10335	956422	033 PCT
2. PO Jose Herreramendez	14880	971476	033 PCT
3. PO Stefano Osso	30066	967237	033 PCT
4. PO Mohamed Shemeis	27509	972422	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Sean Jordon	Abuse: Sergeant Sean Jordon forcibly removed § 87(2)(b) to the hospital.	A . Substantiated
B . PO Sacko Hadzovic	Abuse: Police Officer Sacko Hadzovic frisked § 87(2)(b)	B . Substantiated
C . PO Sacko Hadzovic	Abuse: Police Officer Sacko Hadzovic searched § 87(2)(b)	C . Substantiated
D . PO Carlos Arrecis	Abuse: Police Officer Carlos Arrecis frisked § 87(2)(b)	D . Substantiated
E . PO Carlos Arrecis	Abuse: Police Officer Carlos Arrecis searched § 87(2)(b)	E . Substantiated
F . PO Carlos Arrecis	Force: Police Officer Carlos Arrecis hit § 87(2)(b) against a vehicle.	F . Exonerated
G . PO Thomas Kang	Force: Police Officer Thomas Kang hit § 87(2)(b) against a vehicle.	G . Exonerated
H . PO Carlos Arrecis	Discourtesy: Police Officer Carlos Arrecis spoke discourteously to § 87(2)(b)	H . Substantiated
I . PO Sacko Hadzovic	Discourtesy: Police Officer Sacko Hadzovic spoke discourteously to § 87(2)(b)	I . Substantiated

Case Summary

On June 13, 2022, § 87(2)(b) filed this complaint with the CCRB over the phone.

On June 11, 2022, at approximately 2:50 A.M., Sergeant Sean Jordon and Police Officers John Battista, Thomas Kang, Jose Herreramendez, Carlos Arrecis, Sacko Hadzovic, Stefano Osso, and Mohamed Shemeis, all from the 33rd Precinct, responded to a dispute at 57 Audubon Avenue, in Manhattan. Sgt. Jordon forcibly removed § 87(2)(b) to § 87(2)(b) Hospital (**Allegation A: Abuse of Authority: substantiated**). PO Hadzovic and PO Arrecis frisked and searched § 87(2)(b) (**Allegations B-E: Abuse of Authority: substantiated**). PO Arrecis and PO Kang hit § 87(2)(b) against a vehicle (**Allegations F and G: Force: exonerated**). PO Arrecis and PO Hadzovic spoke discourteously to § 87(2)(b) (**Allegation H and I: Discourtesy: substantiated**).

Ten body worn camera (BWC) videos and one cellphone video from § 87(2)(b) were obtained for this incident (**01-11 Board Review**).

No arrests or summonses resulted from the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Sean Jordon forcibly removed § 87(2)(b) to the hospital.

The following facts are not disputed. On June 11, 2022, at approximately 2:50 a.m., § 87(2)(b) went to Best Deli and Grill, located at 57 Audubon Avenue in Manhattan, and got into an argument with an employee, identified via investigation as § 87(2)(b) who accused § 87(2)(b) of stealing. § 87(2)(b) and § 87(2)(b) both called 911 and requested police. Sgt. Jordan, PO Battista, PO Kang, PO Herreramendez, PO Arrecis, PO Hadzovic, PO Osso, and PO Shemeis responded to the location, spoke with both § 87(2)(b) and § 87(2)(b) and ultimately asked § 87(2)(b) to leave the deli. At some point, Sgt. Jordan ordered for § 87(2)(b) to be removed to the hospital.

§ 87(2)(b) said he went to the deli to some buy beer that he intended to take home, and that while inside the deli, § 87(2)(b) brandished a wooden instrument, and accused § 87(2)(b) of stealing beer (**12-13 Board Review**). § 87(2)(b) denied taking anything from the deli and got into an argument with § 87(2)(b) who pulled § 87(2)(b) pants down, and did not find anything. § 87(2)(b) called 911 and reported that § 87(2)(b) had assaulted him. Officers arrived and spoke to both § 87(2)(b) and § 87(2)(b) inside the deli, after which they asked § 87(2)(b) to leave. § 87(2)(b) exited the deli but told the officers that he wanted to file a complaint against § 87(2)(b). The officers told § 87(2)(b) to leave the location, and that there was no crime to be investigated. § 87(2)(b) told the officers that he was going to the 33rd Precinct stationhouse to file a complaint and began to walk away. Some of the officers grabbed § 87(2)(b) said he was intoxicated and aggressive, and that he needed to go to the hospital. § 87(2)(b) was handcuffed, placed in an ambulance, and transported to § 87(2)(b) Hospital, where he was discharged approximately 20 minutes later. § 87(2)(b) denied consuming alcohol or being intoxicated that night and said he did not act aggressively towards any of the officers during this incident.

According to § 87(2)(b) medical records obtained from § 87(2)(b) Hospital, § 87(2)(b) The reason for admission was listed as “Alcohol Problem and Aggressive Behavior.” His physical exam results stated that upon admission, his pupils were “equal, round, and reactive to light,” § 87(2)(a) – PHL 18(6)

§ 87(2)(b) testimony was consistent with that of § 87(2)(b) except that he did not witness anything that transpired between § 87(2)(b) and the officers once they exited the deli. He did not know that § 87(2)(b) was ultimately removed to the hospital, nor did he know why § 87(2)(b) was removed to the hospital (**15 Board Review**).

Sgt. Jordon, and Police Officers Herreramendez, Battista, Kang, Arrecis, and Hadzovic, all recorded the entirety of this incident on their BWCs, and their videos are consistent with each other. At 01:24 in Sgt. Jordon's BWC footage, he and PO Herreramendez enter the deli with EMS (**01 Board Review**). § 87(2)(b) who is wearing a dark hooded jacket, khaki pants, and a baseball cap, is standing several feet from the entrance near a bank of coolers. § 87(2)(b) is standing behind the front counter, wearing a white t-shirt, a baseball cap, and a blue surgical mask. Between 01:30 and 05:20, Sgt. Jordon listens to both § 87(2)(b) and § 87(2)(b) narratives concerning the dispute. § 87(2)(b) tells Sgt. Jordon that no assault took place, that there are no weapons on scene, and that he just wants § 87(2)(b) to leave the store. § 87(2)(b) states that he was assaulted by § 87(2)(b) that § 87(2)(b) had a "machete-looking stick," and that § 87(2)(b) accused him of stealing an item from the store. § 87(2)(b) does not shout nor slur his words while speaking with the officers. At 04:50, with officers and EMS standing to § 87(2)(b) left, Sgt. Jordon states, "I think we have an EDP." At 05:04, Sgt. Jordon asks § 87(2)(b) if he is drunk. § 87(2)(b) says no, but that he had three beers. At 05:20, Sgt. Jordon asks § 87(2)(b) to exit the store. At 06:10, § 87(2)(b) exits the store with several officers. At 06:26, Sgt. Jordon tells EMS that they can leave because there is no assault that has taken place. Between 07:00 and 13:00, in front of the store, § 87(2)(b) insists that the officers take a statement from him so that he can file a report and press charges against § 87(2)(b) for assault. The officers refuse to do so, stating that a crime did not take place. They repeatedly urge § 87(2)(b) to walk home. § 87(2)(b) refuses. At 10:45, Sgt. Jordon tells PO Arrecis and PO Kang to "go 98" and they begin walking away. At 12:15, § 87(2)(b) insists that the officers take a police report, and appears visibly frustrated and raising his voice. At 13:07, § 87(2)(b) states, "Alright, I'm gonna call the cops again," puts his phone to his ear, and states that he needs police to come to his location. At 13:25, PO Hadzovic turns to Sgt. Jordon and states, "I think it might be, uh, intox." Sgt. Jordon responds, "Yeah. Let's call the bus over." PO Battista requests an ambulance to their location over the radio. The timestamp at that moment is 03:12 A.M. At 14:46, PO Hadzovic, PO Kang, PO Battista, and PO Arrecis surround § 87(2)(b) place his arms behind his back, handcuff him, and place § 87(2)(b) inside the ambulance.

Sgt. Jordan, PO Arrecis, and PO Hadzovic all provided testimonies that were consistent with each other and that of their BWCs. Sgt. Jordan (**23 Board Review**), PO Arrecis (**24 Board Review**), and PO Hadzovic (**25 Board Review**), all acknowledged smelling alcohol on § 87(2)(b) when the officers first arrived on scene, and said that the smell of alcohol coupled with § 87(2)(b) yelling and inconsistent account about the incident led the officers to conclude that § 87(2)(b) was intoxicated. Sgt. Jordon determined § 87(2)(b) was inconsistent because at one point § 87(2)(b) said § 87(2)(b) had a machete, but later on said there was no machete. Sgt. Jordan also said that § 87(2)(b) slurred in his speech while interacting with the officers, and that even though the officers suspected § 87(2)(b) of being intoxicated, they gave him multiple opportunities to leave the location because they believed he was capable of finding his way home. However, § 87(2)(b) refusal to leave the location, insistence on filing a complaint after being told multiple times that there was no crime to be addressed, and his decision to call 911 while the officers were still on scene further elevated Sgt. Jordan's belief that § 87(2)(b) was "not thinking straight" due to being intoxicated.

Sgt. Jordan thus requested an ambulance to have § 87(2)(b) removed to the hospital for public intoxication.

At no point in § 87(2)(b) and § 87(2)(b) calls to 911, nor in the police radio transmission of the incident, does anyone mention § 87(2)(b) being intoxicated (16-17 Board Review).

NYPD Patrol Guide Section 221-13 defines an emotionally disturbed person (EDP) as “A person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others” (18 Board Review).

The BWC establishes that although § 87(2)(b) acknowledged he had consumed two to three beers, he did not otherwise slur his speech, have difficulty walking, act aggressively towards anyone, make any incoherent statements, nor did he make any statements about harming himself or others.

§ 87(2)(g)

it is therefore recommended that Allegation A be closed as substantiated.

Allegation (B) Abuse of Authority: Police Officer Sacko Hadzovic frisked § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Sacko Hadzovic searched § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Carlos Arrecis frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Carlos Arrecis searched § 87(2)(b)

§ 87(2)(b) did not make any allegations about officers frisking and searching him prior to being placed in the ambulance. These allegations were, however, captured on BWC.

PO Hadzovic's BWC at 10:37, shows § 87(2)(b) standing in front of PO Hadzovic prior to being handcuffed (02 Board Review). § 87(2)(b) has a white object slightly sticking out of his left hoodie pocket. § 87(2)(b) also appears to have some items in his front pockets but is unclear from the footage the exact shape of the objects, except that they do not appear flat from the pockets. At 11:03, PO Hadzovic approaches and stands close to § 87(2)(b) and his BWC captures what appears to be rolls of white tissue paper sticking out of § 87(2)(b) left hoodie pocket. At 12:00, § 87(2)(b) is handcuffed. At 12:09, PO Hadzovic grabs and feels an object on the right side of § 87(2)(b) front pants' pocket from outside the pocket. He then pulls open § 87(2)(b) rear right pocket and places the index finger of his right hand inside the pocket. At 12:32, PO Hadzovic, holds open § 87(2)(b) left hoodie pocket (Sgt. Jordan's BWC at 15:20, shows PO Hadzovic inserting his hand inside § 87(2)(b) left hoodie pocket). He grabs § 87(2)(b) front left pant pocket on the outside of the pocket, and then reaches inside the pocket. PO Hadzovic pulls s a lighter, a pack of cigarettes, and a key from § 87(2)(b) front left pocket before placing them back in the pocket. At 13:00, PO Hadzovic enters § 87(2)(b) rear left pocket on his pants, removes § 87(2)(b) phone, which is sticking out, and further reaches into the pocket with his hand, but does

not recover anything else from the pocket.

PO Arrecis' BWC at 02:23, shows PO Arrecis pulling § 87(2)(b) phone from § 87(2)(b) rear pant pocket (06 Board Review). Twenty seconds later, he places the palm of his right hand on § 87(2)(b) rear and front pockets on the right side of his pants, as well as the front pocket of this sweatshirt, and the right side of his waistband.

PO Hadzovic (19 Board Review) acknowledged frisking and searching § 87(2)(b) whereas PO Arrecis (20 Board Review) only acknowledged frisking § 87(2)(b). PO Arrecis said his removal of the cellphone from § 87(2)(b) back pocket did not constitute to a search because he did not reach inside the pocket. PO Arrecis stated he removed the phone from § 87(2)(b) pocket to make sure the phone case did not contain any blades or knives, and that he had seen "other people" store such weapons in their phones. PO Arrecis and PO Hadzovic, however, had no reason to believe that § 87(2)(b) was armed at any point during this incident, but said they frisked and searched § 87(2)(b) to ensure officers and EMTs safety, and that it was NYPD procedure to frisk and search all handcuffed individuals before being placed inside an ambulance. PO Hadzovic and PO Arrecis had no other reasons for frisking and searching § 87(2)(b). They both acknowledged observing some bulges on § 87(2)(b) person, which PO Arrecis described as "fist sized" and "spherical" in shape, but that their observation of the bulges did not factor into their decision to frisk and search § 87(2)(b).

According to People v. De Bour, 40 N.Y.2d 210 (1976), an officer may only frisk an individual if they reasonably suspect they are "in danger of physical injury by virtue of the detainee being armed." Officers, however, require probable cause or voluntary consent in order to search a person not considered under arrest (21 Board Review).

According to NYPD Patrol Guide Procedure 221-13, when an EDP has been restrained, an officer may remove property that is dangerous to life or will facilitate escape (18 Board Review).

§ 87(2)(g)
[REDACTED]

It is therefore recommended that Allegations B through E be closed as substantiated.

Allegation (F) Force: Police Officer Carlos Arrecis hit § 87(2)(b) against a vehicle.

Allegation (G) Force: Police Officer Thomas Kang hit § 87(2)(b) against a vehicle.

Allegation (H) Discourtesy: Police Officer Carlos Arrecis spoke discourteously to § 87(2)(b).

Allegation (I) Discourtesy: Police Officer Sacko Hadzovic spoke discourteously to § 87(2)(b).

§ 87(2)(b) said that the officers who escorted him to the ambulance, identified via investigation as PO Kang and PO Arrecis, hit his knee against the steps of the ambulance, § 87(2)(a) – PHL 18(6) at § 87(2)(b) Hospital, the medical staff told him his knee was “too high” (12-13 Board Review). § 87(2)(b) did not make any allegations about officers speaking discourteously to him, but they were captured on BWC.

§ 87(2)(a) – PHL 18(6) obtained from § 87(2)(b) Hospital, state that § 87(2)(b) left knee did not have any “swelling, warmth or erythema” and that it was able to bear weight (22 Board Review). § 87(2)(a) – PHL 18(6)

Sgt. Jordon’s and PO Battista’s BWC videos are consistent. Sgt. Jordon’s BWC at 19:17 shows PO Arrecis and PO Kang escorting § 87(2)(b) to the ambulance. PO Kang is guiding § 87(2)(b) by his left upper arm while PO Arrecis has him by his right upper arm (01 Board Review). Six feet from the ambulance, § 87(2)(b) leans his torso backward and plants his feet in front of him, impeding the officers’ attempts to escort him to the ambulance. At 16:23 in PO Battista’s BWC footage, PO Kang and PO Arrecis are still holding § 87(2)(b) by his upper arms roughly two feet from the ambulance (08 Board Review). § 87(2)(b) leans forward and appears to drag his feet, while begging the officers not to take him to the hospital. At 16:35, § 87(2)(b) pushes back away from the ambulance. PO Kang and PO Arrecis push § 87(2)(b) forward from his back and pin him against the ambulance. At 16:37, PO Arrecis says to § 87(2)(b) “You need to fucking relax. Alright!” PO Arrecis and PO Kang then push § 87(2)(b) to the ambulance side door, which is less than two feet away. § 87(2)(b) refuses to enter the ambulance and appears to drag his feet. The officers order § 87(2)(b) to enter the ambulance. § 87(2)(b) agrees to enter ambulance. At 17:00, PO Kang, and PO Arrecis assist § 87(2)(b) in taking a step into the ambulance. At 17:13, § 87(2)(b) sits on the floor of the ambulance by the step. PO Hadzovic, who is inside the ambulance with § 87(2)(b) and PO Arrecis, who is outside the ambulance by the steps, grab and attempt to pick § 87(2)(b) up from the floor. § 87(2)(b) elects to get up himself and tells the officers that he “has a bad leg.” At 17:44, PO Hadzovic helps § 87(2)(b) get up from the floor, and places him on a bench.

PO Hadzovic’s BWC (02 Board Review) at 17:35, shows PO Hadzovic saying to § 87(2)(b) “Stop being a fucking kid and stand up,” after § 87(2)(b) enters the ambulance and sits on the floor. At 18:00, PO Hadzovic assists § 87(2)(b) from the floor onto the ambulance’s bench by gripping § 87(2)(b) by the shoulder and pulling upward. PO Hadzovic then says, “Like a fucking kid, man, holy shit,” after placing § 87(2)(b) on the bench.

Sgt. Jordan (23 Board Review), PO Hadzovic (24 Board Review) and PO Arrecis (25 Board Review) all provided consistent testimonies. They said § 87(2)(b) refused to enter the ambulance, was combative, and pulled away when he was being escorted to the ambulance. PO Arrecis and PO Kang responded by guiding § 87(2)(b) up against the side of the ambulance so as to gain control. PO Hadzovic said § 87(2)(b) went limp on the ambulance staircase, and that officers assisted § 87(2)(b) up the stairs and into the ambulance. PO Hadzovic and PO Arrecis denied hitting § 87(2)(b) knee against the ambulance, and Sgt. Jordan did not see any officer hit § 87(2)(b) knee against the ambulance. PO Hadzovic and PO Arrecis both acknowledged using profanities towards § 87(2)(b) during this incident. PO Hadzovic used profanities towards § 87(2)(b) because he wanted to deescalate the situation and gain compliance from § 87(2)(b) whereas PO Arrecis used profanities towards § 87(2)(b) out of aggravation and because he did not want § 87(2)(b) to escape his control.

NYPD Patrol Guide Procedure 221-01 states “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody. In all circumstances, any application or use of force must be reasonable under the circumstances” **(26 Board Review)**.

NYPD Patrol Guide 200-02 states that officers are to “maintain a higher standard of integrity than is generally expected of others,” “respect the dignity of each individual,” and “render services with courtesy and civility” **(27 Board Review)**.

In DCT Case Number 2015-15012, a sergeant was found guilty of discourtesy for using profane language, including the words “fuck,” and “fucking” when the words served no legitimate purpose but to belittle the civilian **(28 Board Review)**.

The BWC shows § 87(2)(b) pulling away from the officers, dragging his feet, and seemingly refusing to allow the officers escort him to the ambulance. PO Kang and PO Vittorio thus pushed and pulled § 87(2)(b) towards the ambulance, and at one point pinned § 87(2)(b) against the side of the ambulance, and the ambulance door, and while it is unclear from the footage whether § 87(2)(b) hit his knee during the officers use of force, § 87(2)(g) it is therefore recommended that **Allegations F and G** be closed as **exonerated**.

BWC footage shows that the officers’ interaction with § 87(2)(b) was not stressful or chaotic in nature, § 87(2)(g) It is therefore recommended that **Allegations H and I** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party **(26 Board Review)**.
- Sgt. Jordon has been a member of service for eight years and is a subject in one other CCRB complaint, which is still under investigation.
 - 202106088 involves a chokehold allegation and a physical force allegation.
- PO Hadzovic has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject.
- PO Arrecis has been a member of service for five years and has been a subject in three other CCRB complaints and six allegations, none of which were substantiated.
- PO Kang has been a member of service for seven years and has been a subject in three other CCRB complaints six allegations, of which two were substantiated.
 - 202104883 involved substantiated allegations of a refusal to provide a name and shield number. The board recommended Command Discipline A. The NYPD’s imposed penalty is unavailable.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 12, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident **(27 Board Review)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator:	<u>Coleson Smith</u>	<u>Investigator Coleson Smith</u>	<u>01/31/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Enoch Sowah</u>	<u></u>	<u>01/31/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date